

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

June 25, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Alvira v. Pampanga Food Company, Inc., et al. 2025-01484062	<u>Plaintiff Balbino Alvira's Motion for Leave to File Second Amended Complaint</u> Plaintiff Balbino Alvira moves for leave to file a second amended complaint to, among other things, add additional allegations and add two named plaintiffs and PAGA representatives. No oppositions have been filed. For the following reasons, plaintiff's motion is granted. Civil Procedure Code § 473(a)(1) states that "[t]he court may . . . in its discretion, after notice to the adverse party, allow, upon any

		terms as may be just, an amendment to any pleading” The court’s discretion will usually be exercised liberally to permit amendment of the pleadings. <i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified. <i>Id.</i> As noted, neither defendant filed an opposition and thus neither defendant has identified any reasons the motion should not be granted or any prejudice from permitting plaintiff to file a second amended complaint at this juncture. Plaintiff to give notice and to file and serve a clean (non-redlined) copy of the second amended complaint attached as Exhibit A to the Hyun Declaration (ROA 185) by July 2, 2026.
2	City of Santa Monica v. The Insurance Company of the State of Pennsylvania, et al. 2022-01261243	<u>Defendant TIG Insurance Company’s Motion to Stay</u> <u>Defendant Santa Monica Police Activities League’s Joinder</u> Defendant TIG Insurance Company (TIG) moves for an order staying this action for one year. Plaintiff City of Santa Monica (City) opposes the motion, as does defendant The Insurance Company of the State of Pennsylvania (ICSOP). For the following reasons, TIG’s motion is denied. Defendant Santa Monica Police Activities League (PAL) filed a joinder in TIG’s motion on June 15, 2026, i.e., 7 court days before the hearing. ROA 927. A joinder is timely if it is served and filed within the time for noticing the particular motion at issue. <i>See, e.g., Persson v. Smart Inventions, Inc.</i> (2005) 125 Cal.App.4th 1141, 1176-1177; <i>Lerma v. County of Orange</i> (2004) 120 Cal.App.4th 709, 719. PAL did not file its joinder within the time for noticing a motion to stay, and its joinder is therefore denied as untimely. TIG argues the court should stay this action for one year because factual issues in this insurance coverage action overlap with the underlying PAL/Uller lawsuits, i.e., the City’s knowledge of Uller’s conduct and the City’s alleged liability for negligent hiring, supervision and retention. TIG states that one of its coverage defenses (the Expected or Intended Injury Exclusion, which precludes coverage for bodily injury “expected or intended from the standpoint of the insured”) requires fact discovery regarding the City’s knowledge of Uller’s conduct, an topic also at issue in the underlying lawsuits. As explained in <i>Great American Ins. Co. v. Superior Ct.</i> (2009) 178 Cal.App.4th 221: “When a declaratory relief action regarding the duty to defend depends on coverage issues, it may be that the resolution of those issues might prejudice the insured in the underlying litigation. ‘For example, when the third party seeks damages on account of the insured’s negligence, and the insurer seeks to avoid providing a defense by arguing that its insured harmed the third party by intentional conduct, the potential that the insurer’s proof will